SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 422 of 2014 (YEAR: 2014)

CORAM: R.M. LODHA, KURIAN JOSEPH, R.F. NARIMAN

Anvar P.V.
... Appellant(s) / Petitioner(s)
Versus
P.K. Basheer
... Respondent(s)

Acts Referred:	Indian Evidence Act, 1872
Sections:	Section 65B Evidence Act, Section 63 Evidence Act

JUDICIAL HEADNOTE & SUMMARY

Overruled Navjot Sandhu on electronic evidence, holding that Sections 65A and 65B constitute a complete code and electronic records cannot be proved by general oral evidence.

RATIO DECIDENDI

The Court held that: Overruled Navjot Sandhu on electronic evidence, holding that Sections 65A and 65B constitute a complete code and electronic records cannot be proved by general oral evidence. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Anvar P.V. v. P.K. Basheer (Criminal Appeal No. 422 of 2014) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Indian Evidence Act, 1872, particularly Section 65B Evidence Act, Section 63 Evidence Act. Overruled Navjot Sandhu on electronic evidence, holding that Sections 65A and 65B constitute a complete code and electronic records cannot be proved by general oral evidence.

OPERATIVE ORDER

ORDER: Decided